

Preliminarily, the handbook attached to the declaration of Ali Ameripour is not sufficiently authenticated. An attorney cannot authenticate a client's document.

Further, Defendant did not establish that Plaintiffs ever assented to the arbitration provision contained in the handbook, either by signature or by conduct. Defendant contends that Plaintiffs accepted the handbook by using the Vehicle or by accepting the benefits under the warranty. Defendant, however, submitted no evidence indicating that Plaintiffs were ever provided with the handbook or informed of the arbitration provision found within the owner's manual. Plaintiffs receipt of an Owner's Manual with a new vehicle does not manifest consent to arbitration.

To form a contract under California law there must be mutual assent. In order to establish mutual assent there must be actual or constructive notice of the terms of agreement. An arbitration term hidden in a 48 page Owner's Handbook does not establish mutual assent, especially in the circumstance that a purchaser executes a sales contract. Even if an argument for mutual assent could be made based on conduct, enforcing such a term in the manner it was presented would be so procedurally unconscionable as to render the term unenforceable.

The court finds that Defendant has also not proven that the purported Bluelink service agreement arbitration clause applies. Defendant's witness declares that Plaintiff purchased enrolled in Bluelink services on July 15, 2025. (Declaration of Vijay Rao in Support of Motion at ¶5.) However, Defendant again lacks specific evidence that Plaintiffs were in fact presented with the Bluelink services arbitration clause, advised of it, or agreed to it. Further, Plaintiffs concerns about their vehicle do not appear to be related to any of the Bluelink-connected services. Even if Defendant's argument that the conduct associated with activating the Bluelink services shows acceptance, bootstrapping the Bluelink-connected services arbitration provisions to apply to the entire vehicle would be procedurally and substantively unconscionable so as to render the term unenforceable.

Plaintiffs are not estopped from denying application of either arbitration agreement. In determining whether equitable estoppel prevents a party from denying application of an arbitration agreement "the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate." (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1136.) However, just as in *Ford Motor Warranty Cases*, the potential liability on warranties Defendant faces here derives from statute, not any contracts between the parties. (*Id.* at p. 1136.)

Conclusion. Defendant's motion to compel arbitration is denied.

LAWRENCE PAUL MORSEN et al. v. LISA WOLFE, City Clerk of Benicia, et al.
CASE NO. CU26-07263

Petition for Writ of Mandate

TENTATIVE RULING:

The petition for peremptory writ of mandate is DENIED.

The petition for writ of mandate was filed on Tuesday, July 28, 2026. The caption reflects a request for statutory priority and request for resolution before August 28, 2026. No request for an ex parte hearing was received. On August 3, 2026, the court issued a notice of writ status conference setting September 23, 2026 for a status conference.

On Thursday August 6, 2026, an amended petition for writ of mandate was filed. The amended petition reflects a request for statutory priority but requested resolution in 9 court days - by August 19, 2026.

On August 6, 2026, an ex parte application for order to shorten time was submitted. The ex parte application was processed by the clerk's office and received by Department 8 on August 10. Department 8 was dark on August 10. On August 11 the parties were notified that Department 8 set an ex parte hearing on August 13. On August 11, 2026, Department 8 was in jury trial. Department 8 was also scheduled to commence a different jury trial on August 13. Timing did not permit consideration of a request for a peremptory writ as contemplated by Elections Code section 13314.

The parties appeared on August 13. After being advised of the Registrar's intent to submit ballot materials for printing on August 19 and the impacts a tardy submission might have on the election materials, the court expressed concern that the short timeline prior to submission by the Registrar of the ballot materials for publication denied due process to the parties and interfered with the prospective election. The parties agreed to file an opposition by August 14 by noon and a reply by August 14 by 4 pm and to hand-deliver the pleadings to Department 8. Hearing was set for August 19 at 9:00.

Overview

Petitioner seeks to "correct" ballot title and label for the Benicia City Charter Measure Y ("Charter Measure" or "Measure Y") and the Benicia Real Property Transfer Tax Measure Z ("Tax Measure" or "Measure Z"). A ballot label is the question and statements specified in Elections Code section 13119 when a measure is placed on the ballot. (Elections Code, § 303.)

The court understands that Benicia proposes the following:

Measure Y Limited Charter Shall the measure, adopting a limited City Charter for the City of Benicia that allows the real property transfer tax in Measure Z to take effect if voters approve both Measures Y and Z, and continues the City's existing council-manager form of government, be adopted?	Measure Z Real Property Transfer Tax Shall the Measure, to primarily ensure newly constructed property sales contribute to maintaining city services and infrastructure, establish a real property transfer tax that will • Not apply to existing homes that sell for \$2 million or less, but apply to other property sales at rates of • 0.004 for sales \$2,000,000 or less, • 0.006 for sales \$2,000,001-\$10,000,000 • 0.008 for sales over \$10,000,000 providing approximately \$230,000 annually, until ended by voters, be adopted?
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Petitioners contend the ballot labels are inaccurate, argumentative and misleading and violate Elections Code section 13119(c). To this end, Petitioners assert the following errors:

1. The statement that the Charter "continues the City's existing council-manager form of government" is misleading;
2. The statement fails to disclose that two new city powers are conferred by the proposed Charter, rather than one;
3. The statement that the transfer tax "primarily ensures newly constructed property sales contribute to maintaining city services and infrastructure" is misleading, inaccurate and promotional;
4. The transfer tax ballot label fails to adequately state the required tax rates; and
5. The ballot exceeds 75 words.

Elections Code section 13314(a)(1) provides a mechanism for an elector to allege an error or omission in the printing of a ballot, county voter information guide, state voter information guide or other official matter. A peremptory writ of mandate shall issue only upon proof of both of the following: (a) the error omission or neglect is a violation of the Elections Code or Constitution; and (b) issuance of the writ will not substantially interfere with the conduct of the election.

Measure Y

California law recognizes two types of cities: general law and charter cities. (Govt. Code, §§ 34100 et seq.) A city organized under the general law of the legislature is referred to as a general law city. (Govt. Code, § 34102.) A municipality organized under a charter is a charter city. (Govt. Code, § 34101.) Charter cities are specifically authorized by the state constitution to govern themselves as to matters deemed municipal affairs. (Cal. Const. Art. XI, § 5.) But as to matters of statewide concern, charter cities remain subject to state law. The charter is the local constitution for municipal affairs and defines the scope of powers for a charter city. “If a city charter is silent as to a particular matter, even one concerning a municipal affair, courts have opined that the matter will be subject to the general laws of the state.” (*Green Valley Landowners Assn. v. City of Vallejo* (2015) 241 Cal.App.4th 425, 435 citing *McLeod v. Board of Pension Commissioners* (1970) 14 Cal.App.3d 23, 29.)

Nothing prohibits a charter city from adopting a strictly limited charter which restricts municipal self-governance and exemption from general laws to a specific category or function authorized by law. A charter city can adopt a charter that is as expansive as California Constitution permits, but it is not required to do so. A charter city’s home rule authority over municipal affairs extends only as far as its charter permits.

Benicia is currently a general law city. The ballot proposal advanced by the City of Benicia asks voters to approve of the City becoming a limited charter city and only if Measure Z also passes, for the singular purpose of enacting, adopting and administering Measure Z, a local real estate property transfer tax that is also on the same ballot.

Under the California Constitution Benicia can choose to restrict and limit its charter powers and otherwise remain subject to general laws.

Article XI, §5 provides:

- (a) It shall be competent in any city charter to provide that the city governed thereunder may make and enforce all ordinances and regulations in respect to municipal affairs, subject only to restrictions and limitations provided in their several charters and in respect to other matters they shall be subject to general laws. City charters adopted pursuant to this Constitution shall supersede any existing charter, and with respect to municipal affairs shall supersede all laws inconsistent therewith.

Benicia will become a charter city if the voters approve Measure X, but if approved, voters will be choosing to exercise only that limited authority expressly identified. Otherwise, Benicia will define itself as a charter city that continues to remain subject to the state’s general laws. The proposed ballot measure clarifies that the method in which Benicia currently exercises its power (i.e. council-manager) will not change. Whether the voters of Benicia decide in the future to vote to make further changes to

the charter authority - rescinding it or expanding it- is speculative. Voters may decide to make changes in the future or repeal any law that the voters adopt; this is always an issue for any election and any matter placed on a ballot.

The city's ballot title and label Measure Z is not inaccurate or misleading, does not fail to identify a second "new city power," and does not otherwise violate the Elections Code or Constitution.

Measure Z

Petitioners object to Measure Z ballot language containing the phrase "to primarily ensure newly constructed property sales contribute to maintaining city services and infrastructure" and propose modified ballot language. Petitioners also contend the ballot label fails to accurately describe the tax rate.

Notably, City changed some of the order of the wording between August 4 and August 7, but no substantive change was made.

The 14 words objected to by Petitioner cannot be viewed without consideration of the language in entirety. Based on the entirety of the subject ballot language, the scope of the proposal is clear and is not inaccurate or misleading. The fact that deleting the 14 words does not result in a substantive change illustrates that the 14 words are not misleading or inaccurate. Wordsmithing is not the objective. (*Martinez v. Superior Court* (2006) 142 Cal.App.4th 1245, 1248 [ballot title need not be the "most accurate," "most comprehensive," or "fairest" that a skilled wordsmith might imagine. The title need only contain words that are neither false, misleading nor partial.].) Revision is not necessary if the words in question are "merely auxiliary or subsidiary." (*Horneff v. City & County of San Francisco* (2003) 110 Cal.App.4th 814, 820.)

Are the 14 words arguably promotional? The phraseology does not use words which evoke a removal of defects or wrongs. (See *McDonough v. Superior Court* (2012) 204 Cal.App.4th 1169, 1174 ["pension reform" evokes negative but "pension modification" allowed.]) Is there a suggestion that absent approval the city would cut services? No. (*McDonough, id* at p. 1176; *Citizens for Responsible Government v. City of Albany* (1977) 56 Cal.App.4th 1199, 1225.) Is it partisan? An argument could be made that it pits current residents of the city against potential new residents, but that is a stretch. A countervailing argument can also be made that the 14 words neutrally clarify the intent and purpose of the new proposed tax given the constraint of 75 words. (See *Citizens for Responsible Govt. v. City of Albany* (1997) 56 Cal.App. 4th 1199, 1226 [disapproving of promotional ballot language that included phrase "in order to provide revenue for the City of Albany, create jobs, provide for an Albany Bay Trail, and allow Albany waterfront access."].)

With respect to the proposed tax rate and duration, the language provides sufficient notice to voters of the tiered rates and period.

The city's description of the ballot language for Measure Y is not inaccurate, misleading or promotional and does not otherwise violate the Elections Code or Constitution.

Word Count

After rejection by the Registrar, the city made non-substantive edits that now meet the 75 word count. This issue is moot.

Burden of Proof

The first amended petition cites as legal authority for the challenge both Code of Civil Procedure section 1085 and Elections Code section 13314. Section 13314 describes the elements a petitioner has the burden to prove in order to seek judicial relief. Under Code of Civil Procedure section 1085, for a writ of mandate to issue there must be: (1) a clear, present and ministerial duty on part of respondent; and (2) a clear, present and beneficial right on the part of the petitioner. (*California Assn. for Health Services at Home v. Dept. of Health Services* (2007) 148 Cal.App.4th 696, 704.) A petitioner always bears the burden of proof in a mandate proceeding brought under code of Civil Procedure section 1085. (*California Correctional Peace Officers Assn. v. State Personnel Bd.* (1995) 10 Cal.4th 1133, 1154.)

The parties argue about the degree of the burden of proof a petitioner bears in matters such as these. Clear and convincing proof is the standard for a challenge to a ballot title or summary prepared by a city attorney in response to a proposed measure submitted by an interested person when a claim is made that the title or summary is false, misleading or inconsistent with Elections Code 9203. (Elections Code, § 9204.) This same clear and convincing standard is also the standard used for a challenge to a ballot title and summary prepared by the Attorney General on the basis that the language is false, misleading or inconsistent with the Elections Code. (Elec. Code, § 9092.) It follows that clear and convincing evidence should similarly be the standard for the same legal challenge to a ballot title and summary prepared by a city attorney when a city governing body proposes a charter.

Ultimately, the court would reach the same conclusion under either a clear and convincing standard or a preponderance of the evidence standard.

Because Petitioners have not met their burden as to the first prong under Elections Code section 13314, the court need not reach the issue of whether issuance of the writ would substantially interfere with the conduct of the election.

Conclusion

The petition for writ of mandate is DENIED.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002